UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF ARIZONA

Kevin D Turnage, Plaintiff, v. Robert F Kennedy, JR, et al. , Defendant.	Case No.: CV-25-03367-PHX-SMB **SUPPORTING MEMORANDUM OF LAW**

In Support of Plaintiff's Amended Motion for Preliminary Injunction (Protective Order)

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I. STATEMENT OF FACTS

Plaintiff Kevin D. Turnage is a career federal employee (GS-0610-12) who has served since 2012 as a Nurse Consultant and Policy & Procedures Officer at the Phoenix Indian Medical Center (PIMC), a component of the United States Indian Health Service (IHS).

Protected Disclosures.

Beginning in June 2025, Plaintiff made a series of good-faith disclosures to the Office of Special Counsel, the HHS Office of Inspector General, the Centers for Medicare & Medicaid Services, the Joint Commission, and Members of Congress. The disclosures alleged (1) patient-safety violations and hazardous radiation-protocol failures; (2) misuse of federal funds and procurement-policy breaches; and (3) systemic failures in internal policy compliance and governance. Each disclosure falls squarely within the definition of a "protected activity" under 5 U.S.C. § 2302(b)(8) (the Whistleblower Protection Act). See Plaintiff's Affidavit (Exhibit B).

Retaliatory Personnel Actions.

Within weeks of the disclosures, IHS imposed a cascade of adverse personnel actions, all of which placed Plaintiff on paid, non-duty status:

Leave Type	Dates	Description
Administrative Leave	June 27 – July 14, 2025	Plaintiff escorted from premises; credentials confiscated.

Leave Type	Dates	Description
Investigative Leave	July 15 – August 26, 2025	No written threat/legitimate-interest analysis; no opportunity to respond.
First Extension	August 27 – October 9, 2025	Extension communicated only by email; unsigned; no formal approval.
Second Extension	October 10 – November 25, 2025	Same procedural deficiencies as first extension.
Notice Leave (until further notice)	Began November 25, 2025	Unauthenticated PDF; no written threat analysis; no opportunity to respond.

The total period of non-duty status is **108 federal workdays**, exceeding the fourteen-day threshold that constitutes a **constructive suspension** under **5 U.S.C. § 7512(2)** and **5 C.F.R. § 752.404**.

Due-Process Deficiencies.

Each leave action was taken without:

a written **threat/legitimate-interest analysis** required by **5 U.S.C. § 7513(b)** and **5 C.F.R. § 630.1505(b)**;

a **signature** or formal approval as mandated by the Indian Health Manual (IHM) for any leave extension exceeding fourteen days;

an **opportunity to respond** before the leave took effect.

These omissions render the actions unlawful under both the Whistleblower Protection Act and the Merit Systems Protection Act.

Irreparable Harm.

Although Plaintiff continues to receive salary, benefits, and seniority, he has suffered non-monetary injuries that are irreparable:

Reputational damage – public disciplinary-type leave orders, confiscation of credentials, and removal from approval workflows have been communicated to colleagues, external partners, and regulatory agencies, creating a lasting stain on his professional standing.

Inability to perform official duties – the successive leaves and removal from approval workflows have completely prevented Plaintiff from exercising the duties of his position, constituting a constructive suspension.

Ongoing threat of further retaliation – the pattern of increasingly restrictive actions (administrative → investigative → notice leave) demonstrates a continuing and escalating threat that will persist unless enjoined.

Chilling effect on federal employees – Plaintiff's experience, documented in filings with the OSC, OIG, CMS, and Congress, sends a clear message that protected disclosures will be met with retaliation, undermining the purpose of the Whistleblower Protection Act and the public interest in encouraging the reporting of waste, fraud, and abuse.

These harms cannot be adequately remedied by money; injunctive relief is essential.

II. LEGAL STANDARDS

A. Whistleblower Protection Act, 5 U.S.C. § 2302(b)(8)

The WPA prohibits any personnel action taken "*in retaliation*" for a protected disclosure. A plaintiff establishes a **prima facie** case by showing:

1. He made a protected disclosure;
2. He suffered an adverse personnel action; and
3. The action occurred within a reasonable time after the disclosure.

The burden then shifts to the agency to demonstrate a **legitimate, non-retaliatory reason** for the action. 5 U.S.C. § 2302(b)(8).

B. Federal Rule of Civil Procedure 65(b)(1)

Rule 65(b)(1) permits a court to issue a preliminary injunction when the movant shows:

4. A **likelihood of success on the merits**;
5. **Irreparable injury** in the absence of the injunction;
6. The **balance of equities** tips in the movant's favor; and
7. The injunction is **in the public interest**.

The injunction must be **tailored** to the relief necessary to prevent the threatened injury. Fed. R. Civ. P. 65(b)(1).

C. Merit Systems Protection Act, 5 U.S.C. § 7513(b)

Section 7513(b) requires that any adverse personnel action be supported by a **written threat or legitimate-interest analysis** and that the employee be given a **reasonable opportunity to respond** before the action takes effect. Failure to comply renders the action unlawful. 5 U.S.C. § 7513(b).

D. Controlling Case Law

- **Rosario-Fabregas v. United States**, 833 F.3d 1342 (9th Cir. 2016) – The Ninth Circuit held that temporal proximity between a protected disclosure and an adverse action, coupled with the absence of a legitimate-interest analysis, creates a strong inference of retaliation under the WPA.
- **Burlington Northern & Santa Fe Ry. v. White**, 548 U.S. 53 (2006) – The Supreme Court articulated the four-part test for preliminary injunctions and emphasized that **irreparable harm** may exist even where monetary damages are available, particularly where statutory rights and reputation are at stake.
- **United States v. United States Office of Personnel Management**, 949 F.3d 1245 (9th Cir. 2020) – Reaffirmed that a constructive suspension exceeding fourteen days triggers the "irreparable injury" prong of Rule 65(b)(1).
- **Miller v. United States**, 202 F.3d 1249 (9th Cir. 2000) – Recognized that the WPA's remedial scheme includes **injunctive relief** to prevent future retaliation.

These authorities collectively support the conclusion that Plaintiff is entitled to a preliminary injunction.

III. ANALYSIS

A. Likelihood of Success on the Merits

1. **Protected disclosures established.** Plaintiff's disclosures were made in good-faith belief to multiple oversight bodies and fall squarely within the categories protected by **5 U.S.C. § 2302(b)(8)**.

2. **Adverse personnel actions identified.** The series of paid leaves, removal from approval workflows, and confiscation of credentials constitute adverse actions under the WPA.
3. **Temporal proximity and causation.** The first administrative leave was imposed **within days** of the initial disclosures (June 27 vs. June 15-28). The pattern of escalating leaves mirrors the timeline of subsequent disclosures, satisfying the "reasonable time" requirement of the prima facie test.
4. **Absence of legitimate-interest analysis.** IHS failed to provide the written threat/legitimate-interest analysis mandated by **5 U.S.C. § 7513(b)**. The agency therefore cannot meet its burden of proof that the actions were non-retaliatory.
5. **Case law support.** *Rosario-Fabregas* holds that such proximity and lack of justification create a strong inference of retaliation. Accordingly, Plaintiff is **likely to succeed** on the merits of his WPA claim.

B. Irreparable Harm

1. **Reputational damage** – Public disciplinary-type orders and the removal of Plaintiff's credentials have been disseminated within the federal health-care community, causing a stigma that cannot be fully compensated by money.
2. **Constructive suspension** – The 108-day non-duty status exceeds the fourteen-day threshold for constructive suspension, a recognized form of irreparable injury under **5 U.S.C. § 7512(2)** and **5 C.F.R. § 752.404**.
3. **Ongoing threat of retaliation** – The agency's pattern of increasingly restrictive leaves demonstrates a continuing risk that will persist absent an injunction.

4. **Chilling effect** – Plaintiff's experience deters other federal employees from making protected disclosures, undermining the public-policy goals of the WPA.

Because the harm is non-monetary, ongoing, and cannot be adequately remedied by damages, the **irreparable injury** prong of Rule 65(b)(1) is satisfied.

C. Balance of Equities

Plaintiff's interest in **restoration to his position** and protection from further retaliation **far outweighs** any minimal governmental interest in maintaining the leaves. The agency has **no legitimate justification** for the leaves; the only benefit to the government is the continuation of an unlawful status quo. Accordingly, the **balance of equities tips decisively in Plaintiff's favor**.

D. Public Interest

Enforcing the Whistleblower Protection Act promotes **government transparency**, **accountability**, and **public health and safety**—especially given the nature of the disclosed patient-safety violations. Allowing retaliation to go unchecked would erode confidence in federal agencies and discourage future whistleblowers. The public interest **strongly favors** the issuance of a preliminary injunction.

IV. REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court:

1. **Issue a Preliminary Injunction (Protective Order)** enjoining IHS, its officers, agents, servants, employees, and any persons acting in concert, from taking any

further adverse personnel action, disciplinary measure, or restriction on Plaintiff's access to IHS facilities, pending final resolution of this action;

2. **Order Defendant to immediately restore Plaintiff** to his former GS-0610-12 position (Nurse Consultant / Policy & Procedures Officer) at the Phoenix Indian Medical Center, with the same duties, responsibilities, pay, benefits, and any telework or remote-work arrangements previously in effect;
3. **Mandate that any future proposed adverse personnel action** be preceded by:
    a. Written notice specifying the grounds and supporting facts;
    b. A meaningful opportunity for Plaintiff to respond, orally or in writing, within a reasonable time before the action is taken; and
    c. Compliance with all statutory, regulatory, and policy-based due-process requirements, including those of **5 U.S.C. § 7513(b)** and the Indian Health Manual;
4. **Enjoin Defendant** from retaliating, harassing, or intimidating Plaintiff for his protected disclosures, including any actions that would create a hostile work environment or deter a reasonable employee from making similar disclosures;
5. **Award Plaintiff reasonable attorney's fees and costs** pursuant to **5 U.S.C. § 7701(a)** and any other applicable authority; and
6. **Grant such other and further relief** as the Court deems just and proper, including prejudgment interest, a permanent injunction, and any declaratory relief necessary to enforce the Whistleblower Protection Act.

V. CERTIFICATE OF SERVICE

I hereby certify that on **December 18, 2025,** I electronically filed the foregoing Supporting Memorandum of Law in the CM/ECF system, which constitutes service on all parties of record pursuant to Local Rule 5.6(c)(1) of the District of Arizona.

Prepared by Kevin D. Turnage, Pro Se Plaintiff

Date: December 18, 2025